Hemant Surana vs Serious Fraud Investigation Office on 20 February, 2024

Author: Navin Chawla

Bench: Navin Chawla

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ BAIL APPLN. 677/2023
HEMANT SURANA

Through:

versus

SERIOUS FRAUD INVESTIGATION OFFICE

Through:

CORAM:
HON'BLE MR. JUSTICE NAVIN CHAWLA

ORDER

% 20.02.2024

1. This application has been filed under Section 438 of the Code of Criminal Procedure, 1973 seeking grant of Anticipatory Bail in CC no.191/2020 titled Serious Fraud Investigation Office v. Prabodh Kumar Tewari @ P.K. Tewari & Ors. pending adjudication before the court of the learned Additional Sessions Judge-03, Special Court (Companies Act), South-West District, Dwarka Courts, New Delhi (hereinafter referred to as the 'Trial Court').

2. The learned counsel for the applicant prays for leave to withdraw the present application with liberty to file an appropriate application before the learned Trial Court for seeking Bail in light of the judgment of the Supreme Court in Satender Kumar Antil v. Central Bureau of Investigation & Anr., 2022 SCC OnLine SC 825.

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3. The learned counsel for the respondent submits that the applicant is not entitled to take the benefit of the judgment of the Supreme Court in Satyender Kumar Antil (Supra).

4. Without expressing any opinion on the above, the application is dismissed as withdrawn, with liberty as prayed for.

5. On the applicant filing the Bail Application within a period of two weeks, no coercive steps shall be taken against the applicant in case the said Bail application is dismissed by the learned Trial Court, for a period of ten days therefrom.

NAVIN CHAWLA, J FEBRUARY 20, 2024/rv/AS Click here to check corrigendum, if any This is a digitally signed order.

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